

UMPQUA BANK VS. SABET, ET AL.

CASE NUMBER: 24CV-0205194

Tentative Ruling on Motion to Fix Amount of Attorney's Fees Awardable Pursuant to Summary Adjudication Order: Plaintiff Umpqua Bank seeks an award of attorney's fees and costs. Despite being properly noticed, Defendants Farzad Sabet, an individual, Marikit Del Rosario-Sabet, an individual, and Farzad Sabet and Marikit Del Rosario-Sabet, Trustees of the Sabet 2012 Trust (Sabet Defendants) did not file an Opposition.

There is a Judgment in this matter for Plaintiff and against Defendants on the First and Third Causes of Action. The First Cause of Action is for Breach of Loan Agreement. The loan agreement that formed the basis of the First Cause of Action is the Promissory Note attached as Exhibit A to the Declaration of Lisa E. Spiwak. Page two includes the following paragraph:

ATTORNEYS' FEES; EXPENSES. Lender may hire or pay someone else to help collect this Note if Borrower does not pay. Borrower will pay Lender that amount. This includes, subject to any limits under applicable law, Lender's attorneys' fees and Lender's legal expenses, whether or not there is a lawsuit, including attorneys' fees, expenses for bankruptcy proceedings (including efforts to modify or vacate any automatic stay or injunction), and appeals. Borrower also will pay any court costs, in addition to all other sums provided by law.

Attorney's Fees. Attorney's fees are recoverable where a contract specifically provides that attorney's fees and costs incurred to enforce the contract shall be awarded to either one of the parties. Civ. Code § 1717(a). Here, the Promissory Note includes such a provision. Plaintiff requests attorney's fees in the amount of \$69,750. To support this request, Plaintiff provides as Exhibit B to the Declaration of Lisa E. Spiwak a Detail Fee Transaction File List from Spiwak & Iezza, LLP. This provides detail for 194.10 hours of attorney time spent on this matter since August 12, 2024. The hours appear to be reasonably incurred. No objection has been raised by Defendants. The requested rates start at \$325 per hour and increase to \$400 per hour in June of 2025. The rates are reasonable for Shasta County and no objection has been raised by Defendants.

Costs. The Promissory Note provides that legal expenses are to be paid by the Borrower in addition to court costs. Plaintiff did not file a Memorandum of Costs, however, Plaintiff provided as Exhibit C to the Declaration of Lisa E. Spiwak a Detail Cost Transaction File List from Spiwak & Iezza, LLP. Items on the list total \$10,984.39. Nearly all of the costs appear to be allowable costs pursuant to CCP § 1033.5(a). While there may be some costs that exceed the parameters of CCP § 1033.5(a), the contract between the parties specifically provides for "legal expenses" not just court costs. The Court finds the items listed in Exhibit C to be reasonably incurred legal expenses. No objection has been raised by Defendants.

The motion is **GRANTED**. Attorney's fees are awarded in the amount of \$69,750 and costs/legal expenses are awarded in the amount of \$10,984.39. Plaintiff provided a proposed Order that will be executed by the Court. The Court notes that the matter is presently set for a review hearing on September 21, 2026. Given that a judgment has been entered, the clerk is directed to vacate the September 21, 2026 hearing date and close the file.

WINSELL VS. CITY OF REDDING, ET AL.

CASE NUMBER: 22CV-0200952

Tentative Ruling on Order for Appearance at Judgment Debtor Examination: This matter is on calendar regarding Defendant Tullis, Inc.'s Application and Order for Appearance and Examination. On June 8, 2026, the Court issued an Order to Appear to judgment debtor Ronald Lee Winsell to appear for an examination today. CCP § 708.110(d) requires personal service of the Order for Appearance and Examination be made on the debtor "not less than 30 days before the date set for the examination." There is no proof of service on file. Without proof of service on Mr. Winsell, the matter is dropped from calendar.

9:00 a.m. – Review Hearings

ANGELL-MURRAY VS. CARRINGTON MORTGAGE SERVICES LLC

CASE NUMBER: 26CV-0209851

This matter is on calendar for review regarding status of removal. On February 27, 2026, the Court received the Notice of Removal of Action to the United States District Court for the Eastern District of California. The Court issued an Order staying the action on February 27, 2026. This case will remain open until the matter is dismissed or remanded back to state court. The Court will calendar the matter periodically to check on the status. To reduce the number of appearances, if the parties submit a status statement at least five court days in advance of a review hearing, the Court will not require an appearance. No status statement was filed for today's hearing. **An appearance is necessary on today's calendar.**

BUTLER, III VS. SHOEMAKER

CASE NUMBER: 25CV-0208353

This matter is on calendar for review regarding status of service. An Order to serve by publication issued on August 24, 2026. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of service. **No appearance is necessary on today's calendar.**

CASEY VS. DEPARTMENT OF MOTOR VEHICLES, ET AL.

CASE NUMBER: 26CV-0211122

This matter is on calendar for review regarding status of administrative record and to set a hearing and briefing schedule. Petitioner has not filed a Proof of Service reflecting service on Respondent Department of Motor Vehicles, however, Petitioner filed a Proof of Service indicating personal service on an individual named Juan Jeric at the address for Respondent's address in Sacramento. If Respondent has been served, the Court expects that the parties will be prepared to provide an update regarding the administrative record and set a briefing schedule and hearing date. If Respondent has not been served, the Court will continue the hearing for Petitioner to effect proper service. **An appearance is necessary on today's calendar.**

FELTON VS. LASKOWSKY, ET AL.

CASE NUMBER: 25CV-0207572

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 30, 2025 indicating the matter would be dismissed no later than July 15, 2026. The matter has not been dismissed, however, Plaintiff filed a status statement informing the Court that the parties are cooperating to sell the property and requesting 180 days to do so. The matter is continued to **Monday, March 15, 2027 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on Monday, March 15, 2027 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the March 15, 2027 hearing. **No appearance is necessary on today's calendar.**

GARRIGUS VS. BLACH BEVERAGE, LLC

CASE NUMBER: 24CV-0206711

This matter is on calendar for status of the case. Both parties filed status statements informing the Court that the matter has settled and is pending preliminary approval. The Court notes that Plaintiff's Motion for Preliminary Approval of Class Action Settlement has been calendared for September 28, 2026. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**